

YOUR FACTUAL RECORD FOR A GEORGIA Sec. 42-8-66 RETROACTIVE FIRST OFFENDER REQUEST

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

YOUR FACTUAL RECORD - GEORGIA RETROACTIVE FIRST OFFENDER, O.C.G.A. Sec. 42-8-66

THIS PAGE IS NOT FILED ANYWHERE. The committed guidance specification records this route's role in one sentence: LegalEase's role is to identify the candidate, explain the gate, and prepare the participant's factual record. This page is that record. It goes to whoever helps you - a lawyer, or one of the expungement desks named in the guidance page - and not to a court.

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THE FACTS, IN THE COMMITTED RECORD'S OWN WORDS

[C1 - sentenced under first offender act] Were you actually sentenced under Georgia's First Offender Act in the original case? If you were, this is not your route.

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[C2 - convicting court and county] Which court convicted you, in which county, and what is the case number?

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[C3 - sentencing date] On what date were you sentenced?

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[C4 - offense code section] Which O.C.G.A. Code section were you convicted under?

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[C5 - first offender ever used] Had you ever been given First Offender treatment before this case?

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[C6 - informed of eligibility] Were you told at the time that you could be sentenced as a first offender?

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[C7 - historical category] Were you sentenced between 18 March 1968 and 31 October 1982 to incarceration of one year or less?

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[C8 - prosecuting office that handled the case] Was the case prosecuted by the District Attorney or by the Solicitor-General for that county?

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[C9 - participant account] In your own words: what do you remember about the sentencing, and what were you told about your options?

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.....

DATE SIGNATURE

(You sign and date your own record. Nothing on this page is signed or dated for you, and nothing on it is filed.)

Route: obligation:track-pathway:GA:ga-rfo:retroactive-first-offender-treatment-under-42-8-66

WHAT THE GEORGIA Sec. 42-8-66 ROUTE IS, WHO RUNS IT, AND WHY NOTHING HERE IS FILED

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

GEORGIA RETROACTIVE FIRST OFFENDER TREATMENT, O.C.G.A. Sec. 42-8-66

WHAT THIS ROUTE IS, AND WHO RUNS IT

****NOTHING IN THIS PACKET IS FILED, AND NO PETITION IS GENERATED.**** The committed guidance specification says both in terms: "Nothing may be filed until the prosecuting attorney's advance consent is obtained. Once it is, the petition is filed in the court in which the individual was convicted. LegalEase does not obtain consent and does not file." and "Not reached on this route as currently offered. No participant document is generated."

What the route is: a petition for retroactive First Offender treatment, exoneration and discharge, which the committed route contract records can convert a conviction into a first-offender discharge.

What stands in front of it: the prosecuting attorney's ADVANCE WRITTEN CONSENT. The committed route contract records that consent is a condition that must exist BEFORE the individual files, and records that absence is never satisfaction - silence, refusal, an unanswered request and 'no known objection' each leave the precondition unmet.

What happens if it is granted: the committed guidance records that a grant converts the conviction into a first offender discharge which is not a conviction and makes the record restrictable and sealable, and that the court sends the order to the petitioner, the prosecuting attorney, GCIC and the Department of Driver Services, both of which must modify their records.

Who runs it: The prosecuting attorney first, then the convicting court. The committed record's own words: consent is sought from the prosecuting attorney before anything is filed; only after consent is obtained may the petition be filed in the convicting court.

WHAT YOU DO

- Fill in your factual record - the other page in this packet. The committed guidance records that preparing it is exactly what this route's product is.
- Obtain the sentencing record and plea paperwork from the original case. The committed guidance names the source: the clerk of the convicting court, asking for the sentencing record, the plea transcript or plea paperwork, and the final disposition.
- Take both to a lawyer or to one of the Georgia expungement desks the committed guidance names.
- Check your answers against the sentencing record and correct them if they disagree - the committed guidance records that check as a required step.

WHAT YOU DO NOT DO

- ****Do not approach the prosecuting attorney for consent by yourself.**** The committed guidance records that obtaining advance consent is negotiation with an opposing party and is outside self-help, and records the handoff as 'always, at the consent stage'.
- ****Do not file anything.**** The committed guidance records that nothing may be filed until consent is obtained, and that LegalEase does not obtain consent and does not file.
- ****Do not treat silence as consent.**** The committed route contract records that silence, refusal, an unanswered request and 'no known objection' each leave the precondition unmet.
- ****Do not use this route if you were actually sentenced under the First Offender Act already.**** The committed guidance's own first question says: if you were, this is not your route.

WHAT IT COSTS, AND WHETHER A WAIVER EXISTS

****The repository establishes this one, and the answer is that there is no fee.**** The committed guidance records it in the statute's own terms: "There shall be no filing fee charged for a petition filed pursuant to O.C.G.A. Sec. 42-8-66, per Sec. 42-8-66(h)." The committed route contract records the same thing - Sec. 42-8-66 imposes no elapsed wait and no filing fee. No fee waiver is needed, and the committed guidance says so: none needed, the statute prohibits a filing fee.

WHO MUST BE SERVED, AND WHO IS NOTIFIED

****Nothing is served.**** The committed guidance records: "Not reached. Nothing is served because nothing is filed without consent." What the committed record does record about notice is that the prosecuting attorney's consent must be obtained before filing, that it is a threshold requirement to file rather than a notice provision, and that prosecutor silence is not consent.

WHEN TO STOP AND GET HELP INSTEAD

- ****Always, at the consent stage.** Obtaining the prosecuting attorney's advance consent is negotiation with an opposing party and is outside self-help.
- the prosecuting attorney declines or does not respond - the committed guidance records that silence is not consent;
- the eligibility claim turns on what you were or were not told at the original sentencing, which the committed guidance records as requiring assessment of the sentencing record;
- the court requires a contested evidentiary hearing, which the committed route contract records as advocacy rather than document preparation;
- any immigration consequence is in play.

WHERE TO GO WHEN SELF-HELP STOPS

Where self-help stops, route the participant to a Georgia expungement desk: Georgia Justice Project, the Cobb County Second Chance Desk, the Henry County Records Restriction Desk, or Middle Georgia Justice "The Desk".

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